

# Metropolitan Planning Commission Meeting August 7th 2025

| Meeting Metadata | Details                                                                                               |
|------------------|-------------------------------------------------------------------------------------------------------|
| Video Recording  | <a href="https://www.youtube.com/watch?v=WAgjtCCNR30">https://www.youtube.com/watch?v=WAgjtCCNR30</a> |
| Publication Date | 2025-08-08T11:54:28Z                                                                                  |
| Target Category  | delaware_county                                                                                       |

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## Delaware Muncie Metropolitan Plan Commission

### Meeting Summary Report

**Meeting Date:** August 7, 2025

**Body:** Delaware Muncie Metropolitan Plan Commission

### 1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer Mr. Smith called the regular meeting of the Delaware Muncie Metropolitan Plan Commission to order at **00:00:41**.
- **Attendance:**
  - **Present:** Mr. Borchers, Mr. Brand, Mr. Carol, Mr. Dishman, Mr. Landis, Miss Owen, Miss Scythe, and Mr. Smith. (Note: Quorum established with eight present, seven voting members).
  - **Absent:** Mr. Clark, Mr. Curley, and Miss Hensley.
  - **Presiding Officer:** Mr. Smith.

## 2. Preliminary & Procedural Business

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- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance 00:00:45.
  - **Approval of Minutes:** 00:01:49 The board reviewed the June 2025 meeting minutes. A roll call vote was conducted:
    - **Vote Disposition:** Approved 7-0 (Mr. Bran, Mr. Carol, Mr. Dishman, Mr. Landis, Miss Owen, Miss Scythe, and Mr. Smith all voting "Yes").
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## 3. Substantive Business & Board Action

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- 00:03:40 **Item Identifier & Title:** MPC13-25Z: Zone Change Appeal for Bradburn Realty LLP
  - **Sponsor / Presenter:** David Kins (Attorney with Dennis Winger & April, representing Bradburn Realty LP and prospective buyer South Tree Development) alongside Jacob Grady (Project Manager, South Tree Development).
  - **Deliberation Summary:** The applicant requested a zone change from R3 Residence Zone to BC Community Business Zone for properties located at 2011 West McGalliard Road, the 2300 block of West McGalliard Road, and the 3100 block of North Winston Drive. The applicant presented a 2006 recorded "consent to vacation of plat restrictions, conditions, and limitations" signed by over 80 neighborhood property owners who were compensated \$2,000 each to support/not oppose commercial rezoning. The proposed future use of the site is an autism therapy center. Board members questioned whether the 20-year-old agreement runs with the land, noting that many current residents purchased homes without knowledge of it. Public opposition focused heavily on traffic congestion on McGalliard and Winston Drive, pedestrian safety, spot zoning concerns, and the viability of another autism clinic given existing regional options.
  - **Item-Specific Public Input:**
    - 00:18:08 Sue Wland (1224 West Weber Dr.): Spoke in opposition, highlighting existing traffic congestion, the presence of five other autism centers within three miles, and the risk of undesirable future commercial uses (e.g., tobacco shops, tattoo parlors) if the zoning changes.
    - 00:21:01 Lucas Pint (President, Anthony Northside Neighborhood Association / 1909 N. New York Ave.): Spoke in opposition on behalf of dozens of residents, arguing the request constitutes illegal spot zoning, violates Article 32 Section 4F standards, harms property values, and overburdens a neighborhood of 147 homes with only two ingress/egress points.
    - 00:24:22 Matthew Spurka (3100 block resident since 2011): Spoke in opposition regarding neighborhood child safety, traffic spillover from

McGalliard, and lack of awareness regarding the 2006 agreement when purchasing his home.

- **00:27:00** Cara Anderson (3705 W. Heath Dr.): Spoke in opposition, expressing safety concerns for children, elderly residents, and individuals with cognitive impairments crossing neighborhood streets due to increased cut-through traffic.
- **00:29:53** Aaron Nef (2737 Winston Dr.): Spoke in opposition, arguing the 2006 contract does not legally run with the land, noting that 51% of current neighbors actively oppose the rezoning, and citing a previous unanimous denial of the exact same request in 2011 (Case MPC04-11Z).
- **00:35:13** Mason Adams (2908 N. Richmond): Spoke in opposition as both a local father and an ABA/autism professional, noting that recent insurance changes and market saturation mean the area cannot sustain another ABA clinic.
- **00:38:26** Belinda Hughes (513 Wintergreen Dr., Yorktown): Spoke in opposition as an autism advocate and provider, citing elopement risks for children and traffic safety hazards near McGalliard.
- **00:40:46** Ruth Daily (317 N. Belmont): Spoke in opposition regarding dangerous left turns at McGalliard and Winston and potential noise from commercial operations.
- **00:42:18** Gary Daily (317 N. Belmont): Spoke in opposition, stating residents signed the 2006 agreement under financial duress (\$2,000 payout) with no choice, leaving a sour taste.
- **Action & Vote Disposition:** **00:36:34** A motion was made and seconded to issue an unfavorable recommendation. Conducted via roll call vote: **Passed Unanimously (7-0)** in favor of an unfavorable recommendation. Forwarded to City Council for the September 8, 2025 meeting.
- **00:58:26 Item Identifier & Title:** MPC14-25Z: Zone Change Appeal for Benjamin M. and Belinda D. Hughes
  - **Sponsor / Presenter:** Belinda Hughes (Applicant).
  - **Deliberation Summary:** Requesting a zone change from R4 Residence Zone to BC Community Business Zone for premises located at 1600 North Wheeling Avenue (adjacent to Family Dollar) to house "BC Coco," a sensory item and baby/parent supply boutique. The applicant noted the building is currently unoccupied, has limited parking (4-5 spaces), and will operate on limited hours (Thursday through Monday).
  - **Item-Specific Public Input:** None recorded.
  - **Action & Vote Disposition:** **00:33:32** A motion was made and seconded for a favorable recommendation. Conducted via roll call vote: **Passed Unanimously (7-0)** in favor of a favorable recommendation. Forwarded to City Council for the September 8, 2025 meeting.

- **00:48:46 Item Identifier & Title:** MPC15-25Z: Zone Change Appeal for CRU Properties LLC
  - **Sponsor / Presenter:** Jonathan Shamblas (Co-owner, CRU Properties LLC).
  - **Deliberation Summary:** Requesting a zone change from R5 Residence Zone to CB Central Business Zone for premises located at 718 North Walnut Street. The applicant explained that townhomes are currently under construction on the site, but a technical zone change is required prior to replatting because the parcel would otherwise be split-zoned under commercial-to-residential code conversions.
  - **Item-Specific Public Input:** None recorded.
  - **Action & Vote Disposition:** **01:07:32** A motion was made and seconded for a favorable recommendation. Conducted via roll call vote: **Passed Unanimously (7-0)** in favor of a favorable recommendation. Forwarded to City Council for the September 8, 2025 meeting.

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## 4. Legislative & Administrative Updates

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- **Recent City Council Actions:** **01:08:34**
  - *MPC1-25DZD* (Robert Huddleston / 2611 & 2619 W. Ethel Ave.): Approved by City Council on August 4, 2025 (9-0).
  - *MPC12-25Z* (James Ry / 2700 block N. Benton Rd.): Approved by City Council on August 4, 2025 (9-0).
  - *MPC03-25A* (Zoning Ordinance Amendments for R1, R2, R3 zones): Approved by City Council on August 4, 2025 (8-1).
- **Board of Zoning Appeals (BZA):** **01:09:53**
  - *BCA23-25* (Huffer Memorial Children's Center & Longfellow PreK): Approved by BZA on June 26, 2025 (4-0).
- **Director's Report:** **01:10:30**
  - **Permits & Revenue:** 468 permits filed through July, generating \$104,159 in revenue. Total active land use/development cases across divisions sits at 363 (39 city, 24 county).
  - **Pond Ordinance:** Steering committee completed edits; draft ready for legal review.
  - **ADA Transition Plan:** Delaware County's 3-year update is nearing completion following public input meetings.
  - **Special Solar Meeting Reminder:** **01:12:50** A special meeting to hear the proposed solar amendment ordinance is scheduled for **Tuesday, August 12, 2025, at 6:00 PM** at the Justice Center Auditorium (3100 S. Titson Ave.). Doors open at 5:15 PM.
    - *Hearing Rules reviewed:* Speakers must sign up in person; time limits will range from 1 to 3 minutes based on total sign-ups; group time-pooling is prohibited; attorneys representing multiple clients are capped at 30 minutes; each side receives a 5-minute rebuttal period.

- *Facility/Security Notes:* Upper seating deck is closed due to a fire inspection. Police/Sheriff presence will be strictly enforced, and staging/platform access will be restricted.
- **Next Regular Meeting Location Change:** 01:39:45 The September 4, 2025 regular meeting will be held at the **Emergency Management Agency (EMA) building** (210 S. Jefferson St. / 911 call center) due to potential scheduling conflicts with County Council budget hearings.

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## 5. Adjournment

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- **Adjournment Disposition:** The meeting concluded following administrative reports and reminders. *(Exact adjournment timestamp not explicitly stated in transcript, occurring immediately after discussion concluding around 01:41:12).*

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